

		The Court DENIES the Defendant's Motion to Set Aside Default and Default Judgment. The Court orders the Plaintiff to give notice of the Court's ruling.
11	30-2026-01561663 FC Orange Associates LP vs. Borden	The Court has read and considered the Plaintiff's Motion to Strike Defendant's Amended Answer to the Complaint (ROA 44) and the Defendant's Opposition (ROA 52). The Court takes Judicial Notice of the Amended Answer (ROA 31) and the Answer (ROA 16). On April 28, 2026, at 4:10 PM, the Defendants filed their original answer in pro per. On May 11, 2026, at 11:23 AM, Defendants thought their new counsel filed an amended answer on the same date as the substitution of attorney filing. Code of Civil Procedure §430.40 allowed the Defendants in this matter to file an amended answer within 10 days after filing their original answer. Defendant's counsel acknowledges that they were one day over the statutory deadline to file an amended answer. In California, public policy favors a trial on the merits rather than based on technical or procedural defaults, particularly in eviction actions where housing is at stake. Addition the Plaintiff alleges no prejudice or harm the Plaintiff suffered based on the small delay in the Defendant's filing. The Court DENIES the Plaintiff's Motion to Strike the Amended Answer. The Court orders the Defendant to give notice of the Court's ruling.
12	30-2025-01530495 FMMB Big Lakes, LLC vs. Alvarez	The Court has read and considered the Defendant's Ex Parte Stay of Execution of Writ of Possession (ROA 87) and Plaintiff's Opposition (ROA 94). The Court takes Judicial Notice of the Stipulation for Entry of Judgment (ROA 64) and Judgment-Unlawful Detainer (ROA 66). Defendant argues that the Court should enforce the stipulation signed by the parties and approved by the Court on April 1, 2026. In substance, however, Defendant seeks modification of the Stipulation and an order requiring Plaintiff to accept terms different from those agreed upon by the parties. The Stipulation expressly provides that "no stay of execution of Judgment of any kind or for any reason shall be allowed to any Defendants, or any third party." The Stipulation further states that "Defendants further confirm that they have reviewed this Stipulation with their Counsel." The parties specifically agreed that Defendant was required to close escrow on or before April 30, 2026, pursuant to detailed terms that included transfer by quitclaim deed. According to Defendant's own declaration, the escrow

		company will not complete the transaction because it will not accept a quitclaim deed and instead requires a grant deed. As a result, the transaction contemplated by the Stipulation was not completed under the agreed terms. California courts strongly favor voluntary settlements and will not set them aside absent a showing of fraud, undue influence, or similar grounds. (<i>Folsom v. Butte County Association of Governments</i> (1982) 32 Cal.3d 668, 676–677.) The Court declines to modify the parties' agreed-upon Stipulation. The agreed close-of-escrow date of April 30, 2026, has passed. Defendant did not complete the transaction in accordance with the terms of the Stipulation for Entry of Judgment. Accordingly, Plaintiff may proceed with enforcement of the Judgment pursuant to the terms of the Stipulation. The Court DENIES the Defendant's Motion to Enforce Agreement. The Court Clerk is to notify the Orange County Sheriff's Department to proceed with the lockout forthwith.
13	30-2025-01533683 Luk vs. Johnson	The Court has read and considered the Defendant's Motion of Attorney's Fees (ROA 26), Plaintiff's Opposition (ROA 37), Plaintiff's Request for Judicial Notice (ROA 35), Notice of Errata (ROA 39) and Defendant's Reply to Opposition (ROA 41). The Court takes Judicial Notice of Plaintiff's Exhibits 1, 2, and 3. The Court has notice of multiple related cases to this dismissed action, including 30-2026-01545106-CU-OR-CJC, the unlimited civil case in which Ms. Johnson is suing the landlord, and 30-2026-01545785-CL-UD-CJC, an active unlawful detainer proceeding between the parties before this Court. Because this action was voluntarily dismissed by the Plaintiff before any request to set the matter for trial, and because ruling on the request would require the Court to make factual determinations regarding issues that remain pending in Case No. 30-2026-01545785-CL-UD-CJC, the Court declines to exercise its discretion to award attorney's fees under Civil Code section 1946.2(h)(1)(B). Further, by Defendant's own admission, the same damages are being sought concurrently in the unlimited civil action. The Defendant, therefore, has an adequate remedy through the pending unlimited proceeding involving the same parties. The Court DENIES the Defendant's Motion for Attorneys' Fees and Costs.
14	30-2026-01562021 Sarena Chan As Trustee Of The Sarena Chan Trust vs. Camaruta	The Court has read and considered the Defendant's Motion to Dismiss (ROA 25). The Court takes Judicial Notice of the entire court docket regarding this matter.